

The Central Electricity Authority Regulations, 1979

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The Central Electricity Authority Regulations, 1979

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The Central Electricity Authority Regulations, 1979

Rule THE-CENTRAL-ELECTRICITY-AUTHORITY-REGULATIONS-1979 of 1979

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The Central Electricity Authority Regulations, 1979

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9.

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In exercise of the powers conferred by section 4-C of the Electricity (Supply) Act, 1948 (

54 of 1948

), as amended by Electricity (Supply) Amendment Act, 1976 (115 of 1976) the Central Electricity Authority hereby, vide its resolution No. 1, prescribes the following regulations for matters specified in clause (a) thereunder:

These regulations may be called The Central Electricity Authority Regulations, 1979 and shall come into force at once.

1.

Definitions.-

(1)

In these regulations

(a)

"Act" means the Electricity (Supply) Act, 1948 (54 of 1948

) as amended from time to time;

(b)

"Authority" means the Central Electricity Authority constituted under section 3 of the Act;

(c)

"Agenda" means the list of business proposed to be transacted at a meeting of the Authority;

(d)

"Chairman" means the Chairman of the Authority appointed under sub-section (3) of section 3 of the Act;

(e)

"Meeting" means the meeting of the Authority whether ordinary or special;

(f)

"Member" means Member of the Authority appointed under sub-section (2) of section 3;

(g)

"Secretary" means the Secretary of the Authority appointed under sub-section (6) of section 3.

(2)

The words and expressions not defined in these regulations shall have the same meaning as are assigned to them in the Act.

2.

The Authority shall meet ordinarily once in a month for transaction of business listed in the Schedule to the regulations.

3.

The Chairman, if he considers expedient, may obtain the views of the Members on any matter contained in the Schedule by circulation of the matter to the Members. In case all the Members agree the matter shall be taken as cleared by the Authority otherwise, it shall be brought on the agenda of the next meeting.

4.

The Chairman, at his discretion, may call for a special meeting on receipt of a requisition in writing from any Member specifying the subject for consideration at the meeting.

5.

All meetings of the Authority shall ordinarily be held in New Delhi at the office of the Authority.

6.

For every ordinary meeting of the Authority, notice in writing of seven clear days shall be sent by the Secretary to all the Members.

7.

A special meeting can be called by the Chairman, in which case the notice for this meeting or a meeting called under clause 4, could be of less than seven days.

8.

Non-receipt of a notice of meeting by Member shall not invalidate the proceedings or any resolution passed or decision taken at such meeting.

9.

The Secretary shall normally send the agenda for the meeting together with notes, statements and reports, if any, alongwith the notice of the meeting.

10.

[The quorum for the meeting shall be three full-time Members including the Chairman. If the Chairman is unable to attend the meeting for any reason, the quorum shall be three full-time Members. If there is no quorum the meeting shall stand adjourned.]

[Substituted by S.O. 630(E), dated 4.8.1999 (w.e.f. 5.8.1999).]

11.

The Chairman shall preside over the meetings and conduct the business. If the Chairman is unable to be present in the

meeting for any reason, one of the full-time Members shall be elected to preside over the meeting and perform the duties of the Chairman.

12.

The rulings given by the Chairman, or the Member presiding over the meeting under clause 11, on any points of procedure shall be final and binding.

13.

In addition to matters included in the Agenda, any other matter proposed by any Member may be discussed with the permission of the Chairman or the presiding Members.

14.

The decision of the Authority shall be taken on the basis of majority of Members present including the Chairman, provided that at least two full-time Members shall be party to the decision taken. In case the votes in favour of or against any proposal are equal, the Chairman, or the Member presiding over the meeting, shall have a casting vote.

15.

The Secretary and such persons as have been invited by the Chairman to attend any meeting may participate in the discussion with the approval of the Chairman or the presiding Member under clause 11, but will not be eligible to vote.

16.

The Secretary or in his absence an officer of the Authority designated by the Chairman, or the presiding Member under clause 11 shall record the minutes of the meetings and maintain a book which will, amongst other things, contain the names and designation of Members and invitees present in the meeting, proceedings and notes of dissent, if any. The draft minutes shall, as soon as practicable, be sent to the Chairman and the attending Members. Comments on the minutes shall be sent so as to reach the Secretary within the period of 15 days from the date of issue of the draft minutes. If no comments are received within that period it shall be presumed that the Member has no comments to offer.

17.

The decisions taken in a meeting of the Authority shall be recorded in the minutes in clear and concise manner to facilitate implementation.

18.

The minutes of the previous meeting shall be confirmed in the next meeting subject to the condition that the Chairman may initiate action on any decision pending confirmation of the minutes.

Schedule

1. Annual Finance Statement and Budget Estimates, for Supplementary or Additional Grants.

2. Unbudgeted expenditure required to be incurred by the Authority.

3. Annual audit report of the Comptroller and Auditor General of India on the affairs of the Authority.

4. Annual report to be published or submitted to the Government.

5. Proposals for amending the regulations made by the Central Government under section 4-C of the Act.

6. Consideration of the rules made by the Central Government under section 4-B.

7. Recommendations in respect of classification of services and pay scales of the employees of the Authority.

8. Recommendations for appointment of Consultants to the Authority.

9. Short-term and long-term power plants for the country as a whole or for any region.

10. Periodical or special review of progress of major schemes under construction.

11. Periodical or special review of power plants or any power systems in service.

12. National training policies and programme in the field of power development.

13. Allocation of funds for research and development in the power field to different research organisations or institutions.

14. Approval of tariff for supply of electricity from nuclear power stations.

15. Short-term and long-term projections of load/energy demands for the country as a whole or any region.

16. Concurrence of power schemes submitted to the Authority under section 29 of the Act.

17. Analysis of tariff structure in power supply industry.

18. Consideration of the proposals of the Central Government setting out principles for calculation of depreciation in respect of State Electricity Boards, generating companies and licensees under section 69(1), section 75-A(3) and clause (vi)(a) of the Sixth Schedule of the Act.

19.

Ratification of any action taken by the Chairman, on behalf of the Authority in emergent circumstances.

20.

Proposal for appointment of the Secretary of the Authority.

21.

Consideration of any proposal to amend the Act.

22.

Concurrence of the regulations made by the Boards under paras (It) and (i) of section 79 of the Act.

23.

Policy regarding forwarding of applications of officers and other employees of the Authority for outside jobs/deputations.

24.

Any other matter with the permission of Chairman.

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